

Petitioner provided an accounting of the hours spent on this matter and the fees incurred.

Analysis

California Civil Code Section 8460(a) provides that “The claimant shall commence an action to enforce a lien within 90 days after recordation of the claim of lien.” If this does not occur, the lien expires.

Section 8482 of the Civil Code requires that the Petitioner demand that the Respondent release the lien with notice of at least 10 days before filing the Petition.

Finally, Section 8488 of the Civil Code entitles the prevailing party to recover expenses for attorney fees.

In the instant matter, there is no evidence to controvert the claim that Respondent failed to pursue an action on the lien. Nor is there any evidence to suggest that Respondent withdrew the lien after the request from Petition.

What’s more, this court finds that both the number of attorney hours spent on the case as well as the hourly rate charged for this work are reasonable.

Disposition

Petition is granted.

Property is to be released from the Mechanic’s Lien forthwith.

Attorneys’ fees are awarded to Petitioner in the amount of \$5,812.

Petitioner to file Order and provide notice to Respondent.

Courtroom Clerk's Session

17. 1:30 PM CASE NUMBER: RS26-0122
CASE NAME: ANDREW SEHVANI VS. JOSHUA THOMPSON
JURY TRIAL
FILED BY:
TENTATIVE RULING: